

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Miskovski	Team: Squad #03	CCRB Case #: 201900489	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 01/03/2019 3:45 PM	Location of Incident: En route to 101st Precinct stationhouse	18 Mo. SOL 2/17/2021	Precinct: 101
Date/Time CV Reported Sun, 01/06/2019 3:03 PM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Wed, 01/16/2019 11:03 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Michael Sciamè	3708	943798	101 DET
2. DT1 Brad Fine	02970	906231	101 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Collin Wynter	3889	931456	101 DET
2. DT3 Michael Sullivan	04018	923225	101 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Michael Sciamè	Abuse: Detective Michael Sciamè did not obtain medical treatment for § 87(2)(b)	A . Unsubstantiated
B . DT1 Brad Fine	Abuse: Detective Brad Fine did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated

Case Summary

On January 6, 2019, § 87(2)(b) filed this complaint via email with IAB, generating log 19-1216. On January 16, 2019, it was received by the CCRB.

On January 3, 2019, at approximately 3:45 p.m., § 87(2)(b) was arrested and taken back to the 101st Precinct Stationhouse. Once at the stationhouse, § 87(2)(b) began to experience his depression and a possible psychiatric episode. Detective Michael Sciamè and Detective Brad Fine of the 101st Precinct Detective Squad drove § 87(2)(b) to Queens Central Booking, and then back to the 101st Precinct stationhouse. En route to the stationhouse, § 87(2)(b) allegedly asked the detectives to go to the hospital, but they refused to take him (**Allegation A: Abuse of Authority**, § 87(2)(g) **Allegation B: Abuse of Authority**, § 87(2)(g)).

There is no video footage in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Michael Sciamè did not obtain medical treatment for § 87(2)(b)

Allegation (B) Abuse of Authority: Detective Brad Fine did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated in his CCRB interview (**01 Board Review**) that on the drive back from Central Booking he requested from his two accompanying officers, identified by the investigation as Detective Sciamè and Detective Fine, that they take him to the hospital for his psychiatric medication. § 87(2)(b) stated that the detectives told him that going to the hospital would increase his processing time. Instead, once they arrived at the stationhouse, Det. Sciamè and Det. Fine let § 87(2)(b) smoke a cigarette and drink a bottle of water, then placed him in a cell.

In his CCRB statement, Det. Sciamè stated that § 87(2)(b) had told the EMTs at Central Booking that he had Bipolar Disorder (**02 Board Review**). § 87(2)(b) had been assessed as a walk-through, meaning he would not be kept at Central Booking if a judge could not be seen that day. Det. Sciamè and Det. Fine decided to take § 87(2)(b) back to the 101st Precinct Stationhouse. En route, Det. Sciamè asked § 87(2)(b) if he would like to go to the hospital due to his conditions. § 87(2)(b) responded that he had already taken his medication and would be fine. Det. Sciamè told § 87(2)(b) that he might not see a judge soon and that the processing would take a while. § 87(2)(b) continued to state that he was fine and did not need medical attention because he wanted to have this incident end as quickly as possible. Det. Sciamè placed § 87(2)(b) in a cell at the 101st Precinct stationhouse. He did not give § 87(2)(b) a cigarette and water bottle. Det. Sciamè stated that § 87(2)(b) never requested medical attention in his presence.

In his CCRB statement, Det. Fine stated that § 87(2)(b) appeared very quiet (**03 Board Review**). Det. Fine was consistent with Det. Sciamè that § 87(2)(b) was assessed as a walk-through at Central Booking and found to have a psychiatric history. On the ride back from Central Booking to the 101st Precinct stationhouse, § 87(2)(b) was still very quiet and never asked for medical attention. Once they arrived at the stationhouse, Det. Sciamè placed § 87(2)(b) in a cell, and Det. Fine had no further interaction with § 87(2)(b). As such he did not believe that he nor any other officer gave § 87(2)(b) a cigarette and bottle of water.

There was no Medical Treatment of Prisoner Report from the 101st Precinct Detective Squad **(07 Board Review)**. The movement log for § 87(2)(b) does not indicate any trips aside from the stationhouse and central booking **(08 Board Review)**.

§ 87(2)(g)

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Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party **(04 Board Review)**.
- Detective Brad Fine has been a member of service for 25 years and has been a subject in two other CCRB complaints and two other allegations, none of which were substantiated.

§ 87(2)(g)

- Detective Michael Sciame has been a member of service for 12 years, and this is the first CCRB complaint in which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On July 5, 2019, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Office of the New York City Comptroller will be forwarded upon receipt **(06 Board Review)**.

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date